

significance sufficed to withhold purely private letters or diaries; and in view of the other provisions of the Act, particularly § 104 (a)(5), it need not be so construed. Purely private materials, whether or not of historical interest, are to be delivered to Mr. Nixon. The federal and other appellees conceded as much at oral argument.*

*"QUESTION: Well now, suppose Mr. Nixon has prepared a diary every day and put down what, exactly what he did, and let's suppose that someone thought that was a purely personal account. Now, I can just imagine that someone might think that it nevertheless is of general historical significance.

"MR. McCREE: May I refer the Court to need No. 5? 'The need to protect any party's opportunity to assert any legally or constitutionally based right or privilege which would prevent or otherwise limit access to such recordings and materials.'

"And I submit that this Act affords Richard M. Nixon the opportunity to assert the contention that this diary of his is personal and has not the kind of general historical significance that will permit his deprivation; and that would then have to be adjudicated in a court.

"QUESTION: Well, do—

"MR. McCREE: And ultimately this Court will answer that question.

"QUESTION: Well, how do you—so you would agree, then, that 104 must be construed—must be construed to sooner or later return to Mr. Nixon what we might call purely private papers?

"MR. McCREE: Indeed I do.

"QUESTION: Can you imagine any diary—thinking of Mr. Truman's diary, which, it is reported, was a result of being dictated every evening, after the day's work—can you conceive of any such material that would not be of general historical interest?

"MR. McCREE: I must concede, being acquainted with some historians, that it's difficult to conceive of anything that might not be of historical interest. But—

"[Laughter.]

"QUESTION: Yes. Archivists and historians, like journalists,—

"MR. McCREE: Indeed they are.

"QUESTION: —think that everything is.

"[Laughter.]

"MR. McCREE: But this legislation recognizes that a claim of privacy,